

be *plena probatio*, they call the testimony of one, though never so clear and positive, *semi-plena probatio* only, on which no sentence can be founded. To make up therefore the necessary complement of witnesses, when they have one only to any single fact, they admit the party himself (plaintiff or defendant) to be examined in his own behalf; and administer to him what is called the *suppletory* oath: and, if his evidence happens to be in his own favour, this immediately converts the half proof into a whole one. By this ingenious device satisfying at once the forms of the Roman law, and acknowledging the superior reasonableness of the law of England: which permits one witness to be sufficient where no more are to be had; and, to avoid all temptations of perjury, lays it down as an invariable rule, that *nemo testis esse debet in propria causa*.

POSITIVE proof is always required, where from the nature of the case it appears it might possibly have been had. But, next to *positive* proof, *circumstantial* evidence or the doctrine of *presumptions* must take place: for when the fact itself cannot be demonstratively evinced, that which comes nearest to the proof of the fact is the proof of such circumstances which either *necessarily*, or *usually*, attend such facts; and these are called *presumptions*, which are only to be relied upon till the contrary be actually proved. *Stabitur præsumptioni donec probetur in contrarium*^u. *Violent* presumption is many times equal to full proof^w; for there those circumstances appear, which *necessarily* attend the fact. As if a landlord sues for rent due at michaelmas 1754, and the tenant cannot prove the payment, but produces an acquittance for rent due at a subsequent time, in full of all demands, this is a violent presumption of his having paid the former rent, and is equivalent to full proof; for though the actual payment is not proved, yet the acquittance in full of all demands is proved, which could not be without such payment: and it therefore induces so forcible a presumption, that no proof shall be admitted

^u Co. Litt. 373.

^w *Ibid.* 6.